STATEMENT OF WORK - Managed Cloud Operations

SOW NW-SOW-2026-0503 | Northwind Industries Inc. and Apex Cloud Solutions LLC

1. Parties and Background

This Statement of Work ("SOW") number NW-SOW-2026-0503 is entered into on 1 October 2026 between Northwind Industries Inc., a Delaware corporation (the "Customer"), and Apex Cloud Solutions LLC, a company organised in the United States with tax identifier 61-3378120 (the "Supplier").

The Customer wishes to engage the Supplier to provide a managed cloud operations and platform migration service as described below, and the Supplier has agreed to provide those services on the terms of this SOW.

2. Definitions

In this Statement of Work, "Services" means the services described in Section 3, "Deliverables" means the work products listed in Section 4, and "Business Day" means a day other than a Saturday, Sunday or public holiday in the place where the Customer is located. Headings are for convenience only and do not affect interpretation.

3. Scope of Services

The Supplier shall provide a managed cloud operations and platform migration service for the Customer's operations teams, including discovery workshops, solution design, implementation, testing, knowledge transfer and hypercare support.

Out of scope are hardware procurement, changes to third-party systems not listed in Annex A, and any services not expressly described in this Section.

4. Deliverables and Milestones

The Supplier shall deliver the following milestones. Each milestone amount becomes payable on acceptance of the related Deliverable.

Milestone	Deliverable	Amount
M1	Discovery report and solution design	USD 36,250.00
M2	Configured solution passing user acceptance testing	USD 72,500.00
M3	Go-live, knowledge transfer and hypercare exit report	USD 36,250.00
	Total contract value	**USD 145,000.00**

5. Project Governance

Each party shall appoint a project manager who will meet weekly to review progress, risks and open actions. A steering committee consisting of one senior representative of each party shall meet monthly. Minutes of each steering committee meeting shall be circulated within three Business Days.

6. Personnel and Subcontracting

The Supplier shall assign suitably qualified personnel and shall not replace key personnel without at least ten Business Days' notice to the Customer. The Supplier shall not subcontract any part of the Services without the Customer's prior written consent, which shall not be unreasonably withheld.

7. Fees

The total fees payable under this SOW are USD 145,000.00 (USD), exclusive of applicable taxes. The fees are fixed and include all Supplier expenses unless otherwise agreed in writing.

8. Invoicing and Payment

The Supplier shall invoice each milestone amount on acceptance. The Customer shall pay each invoice within fifteen (15) days of the invoice date (Net 15).

9. Acceptance

Each Deliverable shall be submitted for acceptance testing. The Customer shall notify the Supplier of acceptance or of any material non-conformity within ten Business Days. The Supplier shall correct any non-conformity and resubmit the Deliverable at no additional charge.

10. Service Levels

For hosted components the Supplier shall meet the availability and incident response targets set out in Annex A. Service credits for missed targets shall be applied against the next invoice.

11. Data Protection and Security

The Supplier shall process Customer personal data only on documented instructions from the Customer, shall maintain appropriate technical and organisational security measures, and shall notify the Customer of any personal data breach without undue delay and in any event within 48 hours.

12. Intellectual Property

All intellectual property rights in the Deliverables shall vest in the Customer upon payment. The Supplier retains ownership of its pre-existing tools and grants the Customer a perpetual, royalty-free licence to use them as part of the Deliverables.

13. Warranties

The Supplier warrants that each Deliverable will conform materially to its specification for a period of 30 days from acceptance and will remedy any non-conformity notified within that period at no additional cost.

17. Confidentiality

Each party shall keep the other party's confidential information secret and use it only for the purposes of this Statement of Work. These obligations survive for five years after expiry or termination.

19. Change Control

Any change to the scope, timeline or fees shall be agreed through a written change request signed by both project managers. No change is binding until signed.

14. General Operational Provisions

The parties shall cooperate in good faith on operational matters, including access to facilities, provision of test data and timely decisions on design questions. Each party shall bear its own costs of such cooperation. Supplier liability shall be unlimited for all general operational claims, and the liability of the Customer under this SOW shall likewise be unlimited. Operational meetings may be held remotely, and decisions recorded in writing by either project manager shall bind both parties.

15. Term and Renewal

This SOW starts on the effective date and continues for an initial term of 12 months. It shall automatically renew for successive twelve-month terms unless either party gives written notice of non-renewal at least 30 days before the end of the then-current term.

16. Termination

Either party may terminate this Statement of Work for material breach that is not remedied within thirty days of written notice. The Customer may terminate for convenience on sixty days' written notice, paying for Services performed up to the termination date.

20. Reporting

The Supplier shall provide a monthly service report covering progress against milestones, open risks, staffing, and service level performance. Reports are due by the fifth Business Day of each month.

21. Insurance

The Supplier shall maintain professional indemnity insurance of not less than USD 1,000,000 and shall provide certificates of insurance on request.

22. Compliance

The Supplier shall comply with all applicable anti-bribery, export control and sanctions laws and with the Customer's Supplier Code of Conduct.

18. Governing Law and Disputes

This SOW is governed by the laws of the State of Delaware. The courts of Wilmington, Delaware have exclusive jurisdiction over any dispute.

Annex A - Service Level Targets

Monthly availability of the managed platform shall be at least 99.5 percent. Priority 1 incidents receive a response within 30 minutes. Priority 2 incidents receive a response within 2 hours. Service credits of 5 percent of monthly fees apply per percentage point below target. Monthly availability of the managed platform shall be at least 99.5 percent. Priority 1 incidents receive a response within 30 minutes. Priority 2 incidents receive a response within 2 hours. Service credits of 5 percent of monthly fees apply per percentage point below target. Monthly availability of the managed platform shall be at least 99.5 percent. Priority 1 incidents receive a response within 30 minutes. Priority 2 incidents receive a response within 2 hours. Service credits of 5 percent of monthly fees apply per percentage point below target.

Annex B - Migration Wave Plan

Wave 1 migrates non-production workloads in weeks 1 to 4. Wave 2 migrates customer-facing workloads in weeks 5 to 10 following a rehearsal. Wave 3 decommissions legacy hosting in weeks 11 to 14. Each wave has a go or no-go checkpoint chaired by the Customer project manager. Wave 1 migrates non-production workloads in weeks 1 to 4. Wave 2 migrates customer-facing workloads in weeks 5 to 10 following a rehearsal. Wave 3 decommissions legacy hosting in weeks 11 to 14. Each wave has a go or no-go checkpoint chaired by the Customer project manager. Wave 1 migrates non-production workloads in weeks 1 to 4. Wave 2 migrates customer-facing workloads in weeks 5 to 10 following a rehearsal. Wave 3 decommissions legacy hosting in weeks 11 to 14. Each wave has a go or no-go checkpoint chaired by the Customer project manager.

23. General

This Statement of Work, together with its annexes, is the entire agreement between the parties regarding its subject matter. If any provision is held invalid, the remaining provisions remain in force. Notices must be given in writing to the addresses stated in Section 1.

24. Signatures

For the Customer	For the Supplier
Northwind Industries Inc.	Apex Cloud Solutions LLC
Name: J. Ramirez, Director of Operations	Name: R. Whitfield, Chief Commercial Officer
Signature: _____	Signature: _____